



File No.: EXP202305266

RESOLUTION OF RIGHTS PROCEDURE

The procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, and the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right of access and deletion against ASCIA EAS, S.A. (hereinafter, the respondent) without receiving the legally established response to his request.

The claimant states that on December 22 and 31, 2022, he sent two emails to the respondent, specifically to the email address ***EMAIL.1, requesting access to and deletion of his data, without having received a response once the legally established period for this had elapsed.

He provides a screenshot of the emails sent to the respondent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent states that it has not received the rights exercises via email.

"(...) having received this complaint today, April 26, 2023, we proceed to adopt the following decision: to delete from our systems any personal data of the client making the complaint," and they sent him an email dated May 3, 2023, informing him of the deletion, providing a copy of it.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the claimant's requests to be satisfied. Consequently, on June 22, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present the arguments it deemed appropriate, stating that "(...) our IT staff informs us that since more than 90 days have passed since the alleged emails were sent from a Hotmail account, we cannot know if they arrived at our account ***EMAIL.1, nor do we have confirmation from Hotmail of delivery or reading of said emails on our part that confirms their receipt."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, he may formulate any arguments he considers appropriate, receiving arguments in which it is noted that access requested is still not being provided to the claimant.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as

appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that it had provided the claimant with the appropriate response.

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The result of said transfer did not allow for the satisfaction of the claims of the complaining party. Consequently, on June 22, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to attend to such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the data subject chooses a means other than the one offered that involves a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following: "1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

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- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links

to those personal data, or any copies or replications of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims.

VI

Conclusion

During the processing of this procedure, the entity being complained against has responded to this Agency, indicating that it has not received the rights exercises via email, but that, having become aware of them with the transfer of the complaint, it has proceeded to delete the data from its systems. The Guidelines 01/2022 on the rights of data subjects — Right of access, version 2.0, adopted on March 28, 2023, state in paragraph 53 the following (the translation is ours): However, if a data subject makes a request using a communication channel provided by the controller, which is

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different from what is indicated as preferable, such request shall be considered, in general, effective and the data controller shall process such request accordingly (see the examples below). Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated (...). This may include, for example, communication data of the data controller provided in their communications directed directly to the data subjects or contact data publicly provided by the data controller, such as in the data controller's privacy policy or other mandatory legal notices of the data controller (for example, contact information of the owner or company on a website) (...).

Analyzing the aforementioned response, the following is observed:

- In relation to the right to erasure, during the processing of this procedure, the respondent has sent the complainant a letter informing them that they have proceeded to erase their data. Consequently, having addressed the right belatedly, it is appropriate to uphold, for formal reasons, the complaint raised.

- In relation to the right of access, no evidence has been provided that allows for the consideration that a response has been expressly given regarding the right, or that it has been denied with justification. In accordance with data protection regulations, the erasure of data as established in Article 32 of the LOPDGDD must be carried out through blocking; therefore, the erasure of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion. This action is subject to certain conditions intended to ensure and guarantee the affected person's right to the protection of their personal data.

The blocked data will remain available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the data protection authorities, for the requirements of possible liabilities arising from the processing and for the statute of limitations of these.

Therefore, the access request must be addressed in accordance with the provisions of Article 15 of the GDPR. The request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the request to exercise the right of access is not attached, it is

appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge ASCIA EAS, S.A. with NIF A29351525, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against ASCIA EAS, S.A. regarding the right to erasure. However, it is not appropriate to issue a new certification by the respondent, as the response has been issued belatedly, and no additional actions are required from the controller.

THIRD: TO NOTIFY this resolution to Mr. A.A.A. and to ASCIA EAS, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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